

24STCV09832 24STCV09832

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-17

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Case Number: 24STCV09832 Hearing Date: September 17, 2026 Dept: 309

Superior

Court of California

County

of Los Angeles

DEPARTMENT 309

TENTATIVE RULING

DERSHAY

WOODS-BOLER

vs.

WEST

GARDENA CARE CENTER LLC dba WEST GARDENA POST ACUTE, et al.

Case No.: 24STCV09832

Hearing

Date: September 17, 2026

Plaintiff's

motion to tax costs is GRANTED.

On 4/19/2024,

Plaintiff Dershay Woods-Boler (Plaintiff) filed suit against West Gardena Care

Center, LLC dba West Gardena Post Acute, Kenneth Lehmann, Daniel Rivera, and Maria Bernardo, alleging: (1) disability discrimination; (2) failure to accommodate; (3) failure to engage in interactive process; (4) retaliation; (5) violation of the California Family Rights Act (CFRA); (6) retaliation in violation of CFRA; (7) failure to prevent; (8) violation of Labor Code section 1102.5; (9) violation of Labor Code section 232.5; (10) violation of Labor Code section 98.6; (11) violation of Business and Professions Code section 17200; and (12) constructive wrongful termination.

On

7/17/2026, Plaintiff moved to tax costs.

Discussion

Plaintiff

argues that Defendant is not entitled to recover costs because: (1) this Court lacks jurisdiction to award costs that were neither requested from nor awarded by the arbitrator; and (2) even assuming this Court has jurisdiction to award Defendant costs, Defendant is not entitled to any costs unless there is a finding that Plaintiff's lawsuit was "frivolous, unreasonable, or groundless."

After

review, the Court finds insufficient evidence to conclude Plaintiff's lawsuit was "frivolous, unreasonable, or groundless." First, the arbitrator made no such finding, and the Court will not make a post hoc determination when it has not been able to consider the substantive facts and arguments of the case. Second, the language pointed to by Defendant to show that the claim is frivolous is based on the arbitrator's own determinations about Plaintiff's credibility, which are questions of fact.

Based

on the foregoing, Plaintiff's motion to tax costs is granted.

It is so ordered.

Dated: September
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.